

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

Q- The Fundamental Duties were incorporated in the constitution to balance citizens' rights with responsibilities. Critically analyse the evolution, significance and legal enforceability of Fundamental Duties in India.

Ans. As per Gandhiji - "the true source of right is duty. If we discharge our duties, rights will not be far to seek. If leaving duties unperformed we run after rights, they will escape us."

Fundamental Duties (FDs) are enshrined in Part IV A of constitution in article 51A. It was added through 42nd Constitutional Amendment Act, 1976.

Fundamental Rights Vs Duties -

Parameter	Fundamental Rights	Fundamental Duties
Nature	Legal and justiciable	Moral & legal but non-justiciable
Purpose	Protect individual liberty	Promote collective responsibility
Application	Against state actions	Applies to citizens towards state and society

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

However, rights and duties are not separate identities but interdependent and complementary to each other.

Fundamental Right $\longleftrightarrow$ Corresponding Duty

① Right to equality $\longleftrightarrow$ Duty to renounce derogatory practices to women's dignity

② Freedom of speech $\longleftrightarrow$ Duty to maintain harmony & avoid hate speech

③ Religious freedom $\longleftrightarrow$ Promote secularism and religious tolerance

④ Right to education $\longleftrightarrow$ Duty of parents to provide education to children

Duties provide a framework for the responsible exercise of rights.

इस हाशिप
में केवल
प्रश्न संख्या
लिखें।

Only write
question
number in
this margin

Specimen Booklet

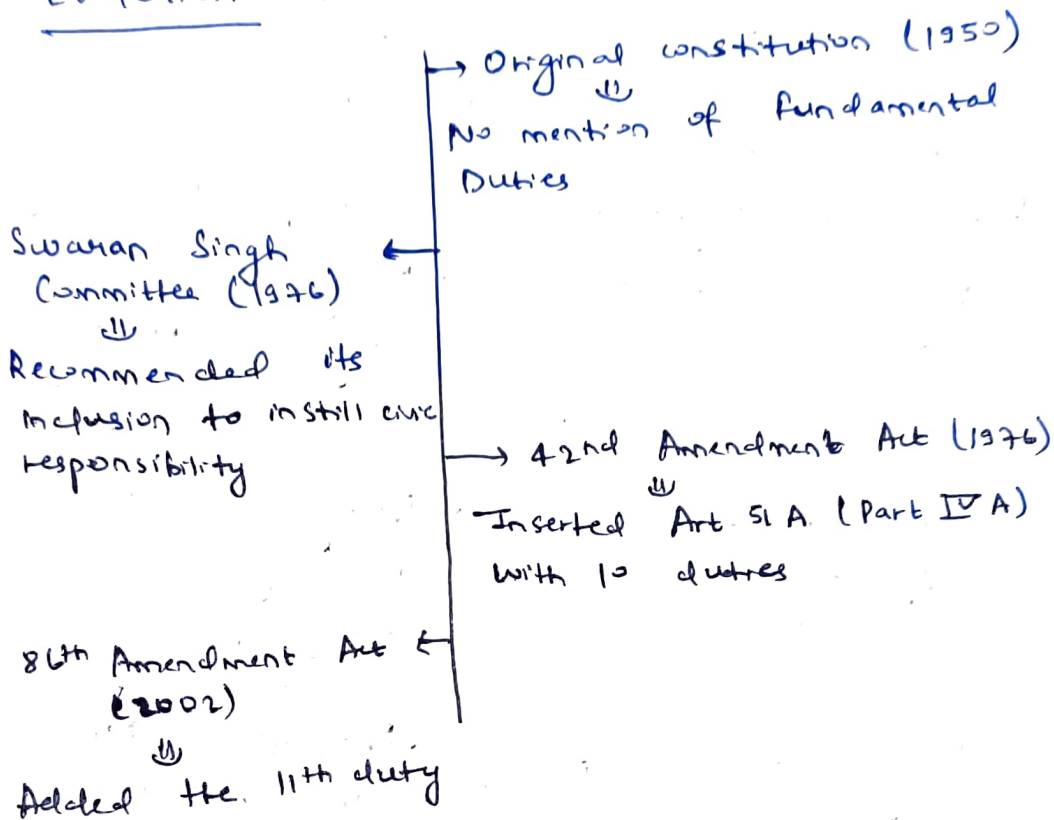
For Practice Purpose Only

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

उम्मीदवारों को
इस हाशिप में
नहीं लिखना
चाहिए।
Candidates
must not
write on
this margin.

Evolution



Although originally Fundamental duties were not present, but it still existed in the form of various provisions of constitution such as Preamble. The preamble has the inherent idea of about citizens' obligations and responsibilities.

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

Significance —

① Promote civic consciousness —

FDs promote civic consciousness and remind citizens of their responsibilities towards their nation.

② National unity and integrity —

FDs promote national unity and integrity promoting harmony and protecting the sovereignty and unity of India.
This helps foster patriotism.

③ Social responsibility —

Duties like protecting the environment, safeguarding public property promote responsible behaviour among citizens.

④ Balance rights and responsibilities —

While fundamental rights are crucial, FDs provide a counterbalance by emphasizing citizens' obligations.

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

⑤ Constitutional interpretation —

Courts can consider fundamental duties while interpreting laws and determining their constitutional validity.

⑥ Promote values —

The duties like non-violence, respect for women, preservation of cultural heritage are crucial for societal progress.

Legal enforceability —

① Legislative Measures —

↳ Certain laws have been enacted to implement specific FDs

↳ Environmental protection laws align with duty to protect and improve the natural environment.

↳ The Prevention of Insults to National Honour Act, 1971 enforce respect for National Flag and National Anthem.

② Judicial pronouncements —

↳ AIIMS Students Union Vs AIIMS (2001)
Case → FDs are as important as FRs

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

↳ Ranganath Mishra Vs Union of India (2003) → FDs should be upheld through legal and social sanctions.

↳ Minerva Mills Vs Union of India (1980)
⇒ FD is still regarded as rule of law that is expected to be followed

↳ MC Mehta Vs Union of India → Linked article 31A(g) to environmental protection laws.

Challenges —

① Lack of legal backing —

No mechanism to directly enforce the FDs.

② Public apathy —

Many citizens are unaware of their duties.

③ Selective enforcement —

Some duties are enforced while others are not

UPSC

Candidate must adhere to the word limit specified in the question.
Any page or portion of the page left blank must be clearly struck off.

WAY FORWARD —

- ↳ Incorporate the teachings of FDs into school curriculum to instill these values from a young age.
- ↳ Launch nationwide campaigns to educate citizens about their duties.
- ↳ Establish dedicated bodies or committees at various levels of govt to monitor and promote observance of FDs.
- ↳ Consider expanding list of FDs to include responsibilities such as voting, paying taxes etc.

Although FDs are not legally enforceable their role in shaping responsible citizenship, national integrity and democratic values is crucial.